

Comment

Section 82 lays down that the consignee or the endorsee shall take delivery of the consignment or part thereof and in case of failure to take delivery wharfage charges may be levied.

83. Lien for freight or any other sum due.- (1) If the consignor, the consignee or the endorsee fails to pay on demand any freight or other charges due from him in respect of any consignment, the railway administration may detain such consignment or part thereof or, if such consignment is delivered, it may detain any other consignment of such person which is in, or thereafter comes into, its possession.

(2) The railway administration may, if the consignment detained under sub-section (1) is --

(a) perishable in nature, sell at once ; or

(b) not perishable in nature, sell by public auction,

Such consignment or part thereof, as may be necessary to realize a sum equal to the freight or other charges:

Provided that where a railway administration for reasons to be recorded in writing is of the opinion that it is not expedient to hold the auction, such consignment or part thereof may be sold in such manner as may be prescribed.

(3) The railway administration may, shall give a notice of not less than seven days of the public auction under Cl. (b) of sub-section (2) in one or more local news papers or where there are no such manner as may be prescribed.

(4) The railway administration may, out of the sale proceeds received under sub-section (2) retain a sum equal to the freight and other charges including expenses for the sale due to it and the surplus of such proceeds and the part of the consignment, if any, shall be rendered to the person entitled thereto.

Comment

Section 83 provides for detention of consignment, part thereof or any other consignment of a person from whom any charges are recoverable by a railway administration and the manner of disposal of such consignment and rendering the surplus of sale proceeds to the person entitled thereto.